

SPECIAL PROVISIONS RELATING TO CERTAIN CLASSES

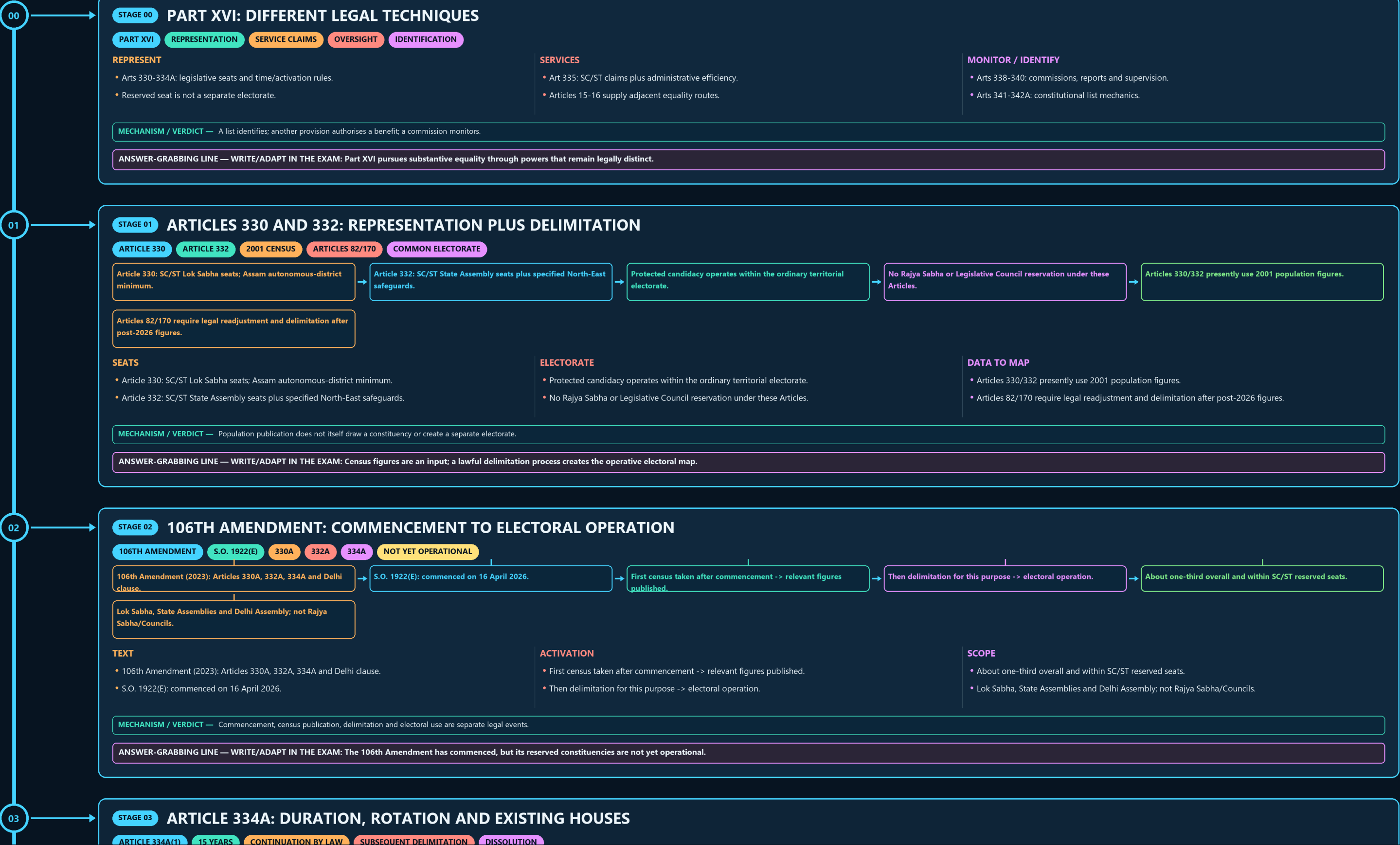
CORE -> TIMELINE -> ARTICLES -> MECHANISMS -> AMENDMENTS/CASES -> TRAPS -> ANSWER SPINE

Read the numbered rail top to bottom. Each stage states the exact source, authority, legal effect and limit.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Source control: official text verified; prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



03

STAGE 03

ARTICLE 334A: DURATION, ROTATION AND EXISTING HOUSES

ARTICLE 334A(1)15 YEARSCONTINUATION BY LAWSUBSEQUENT DELIMITATIONDISSOLUTION

CLAUSEText

CLAUSEText

CLAUSEText

MECHANISM / VERDICT

ANSWER-GRABBING LINE

04

STAGE 04

ANGLO-INDIAN CLOCKS AND EXHAUSTED TRANSITIONS

ARTICLES 331/333104TH AMENDMENT80 v 70 YEARSARTICLES 336/337TRANSITION

Article 331: President could nominate up to two Lok Sabha members.

Article 333: Governor could nominate one Assembly member.

104th Amendment: SC/ST seats to eighty years, until 25 January 2030.

Anglo-Indian nomination stayed seventy years and ceased after 25 January 2020.

Specified service reservation diminished and ended after ten years.

Special education grants diminished and ended after ten years; 40% admission condition.

REPRESENTATION

ARTICLE 334

ARTICLES 336-337

MECHANISM / VERDICT

ANSWER-GRABBING LINE

05

STAGE 05

ARTICLE 335 AND THE INCLUSIVE-EFFICIENCY BRIDGE

ARTICLE 33582ND AMENDMENTM. NAGARAJ (2006)JARNAIL SINGH (2018)INCLUSIVE EFFICIENCY

TEXT

PROVISO

CASES

MECHANISM / VERDICT

ANSWER-GRABBING LINE

06

STAGE 06

NCSC, NCST AND NCBC: ACCOUNTABILITY NOT ADJUDICATION

NCSCNCSTNCBCCIVIL-COURT POWERSACTION MEMORANDUM

INSTITUTIONS

FUNCTIONS

LIMITS

MECHANISM / VERDICT

06

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Administrative efficiency must be read through inclusion, competence and constitutional equality.

STAGE 06

NCSC, NCST AND NCBC: ACCOUNTABILITY NOT ADJUDICATION

NCSC

NCST

NCBC

CIVIL-COURT POWERS

ACTION MEMORANDUM

INSTITUTIONS

- Article 338: NCSC, including Article 338(10) Anglo-Indian reference.
- Article 338A: NCST; Article 338B: NCBC.

FUNCTIONS

- Monitor safeguards, inquire complaints, advise/evaluate and report.
- President-appointed Chair, Vice-Chair and three members.

LIMITS

- Civil-court powers apply to investigation/inquiry.
- Reports and recommendations are not binding decrees or list amendments.

MECHANISM / VERDICT —

Inquiry power, reporting power and final legal authority must remain separate.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Constitutional commissions strengthen evidence and legislative accountability without replacing courts or legislatures.

07

STAGE 07

ARTICLES 339 AND 340: SUPERVISION VERSUS INVESTIGATION

ARTICLE 339

ST WELFARE

ARTICLE 340

SEBC INVESTIGATION

NOT NCBC

President may appoint Scheduled Areas/ST-welfare commission.

→

Union may direct States on schemes essential for ST welfare.

→

Temporary presidential commission investigates SEBC conditions and difficulties.

→

Recommendations, grants and action memorandum go to Parliament.

→

Article 339 is not Fifth/Sixth Schedule administration.

Article 340 commission is not permanent NCBC under Article 338B.

ARTICLE 339

- President may appoint Scheduled Areas/ST-welfare commission.
- Union may direct States on schemes essential for ST welfare.

ARTICLE 340

- Temporary presidential commission investigates SEBC conditions and difficulties.
- Recommendations, grants and action memorandum go to Parliament.

FIREWALL

- Article 339 is not Fifth/Sixth Schedule administration.
- Article 340 commission is not permanent NCBC under Article 338B.

MECHANISM / VERDICT —

Institutional investigation must still be translated through competent law, finance or administration.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 339 and 340 create supervision and evidence, not automatic reservation benefits.

08

STAGE 08

ARTICLES 341 AND 342: TERRITORIAL LIST INTEGRITY

ARTICLE 341

ARTICLE 342

PRESIDENT

PARLIAMENT BY LAW

TERRITORIALITY

Governor consultation applies where a State is concerned.

→

Parliament alone includes or excludes by law.

→

A later executive notification cannot vary the constitutional list.

President specifies State/UT SC or ST list by public notification.

INITIAL

- President specifies State/UT SC or ST list by public notification.
- Governor consultation applies where a State is concerned.

ALTERATION

- Parliament alone includes or excludes by law.
- A later executive notification cannot vary the constitutional list.

EFFECT

- Status is territorial, not automatically pan-India.
- List identity does not itself supply every benefit.

MECHANISM / VERDICT —

State evidence and recommendation cannot become independent Article 341 or 342 list law.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: SC/ST list integrity rests on presidential specification followed by parliamentary alteration.

09

STAGE 09

ARTICLE 342A: 102ND TO 105TH AMENDMENT FEDERALISM

102ND AMENDMENT

JAISHRI LAXMANRAO PATIL (2021)

105TH AMENDMENT

CENTRAL LIST

STATE LIST BY LAW

Inserted Article 338B, original Article 342A and Article 366(26C).

→

Constitutionalised the NCBC.

→

Jaishri Laxmanrao Patil (2021): pre-105th majority displaced State identification.

→

Separate Maratha ceiling holding must not be conflated.

→

Article 342A(1)-(2): Central List for Central purposes.

Article 342A(3): State/UT own-purpose list by law; entries may differ.

102ND (2018)

- Inserted Article 338B, original Article 342A and Article 366(26C).

JAISHRI (2021)

- Jaishri Laxmanrao Patil (2021): pre-105th majority displaced State identification.

105TH (2021)

- Article 342A(1)-(2): Central List for Central purposes.

SPECIAL PROVISIONS RELATING TO CERTAIN CLASSES • TILE 3/4 • same master rows 5248-8482 of 11106 • continues below

09

STAGE 09 ARTICLE 342A: 102ND TO 105TH AMENDMENT FEDERALISM

102ND AMENDMENT

JAISHRI LAXMANRAO PATIL (2021)

105TH AMENDMENT

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STATE LIST BY LAW

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- Jaishri Laxmanrao Patil (2021): pre-105th majority displaced State identification.
- Separate Maratha ceiling holding must not be conflated.

105TH (2021)

- Article 342A(1)-(2): Central List for Central purposes.
- Article 342A(3): State/UT own-purpose list by law; entries may differ.

MECHANISM / VERDICT — State SEBC-list power does not extend to Articles 341 and 342 SC/ST lists.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The 105th Amendment restored express State list competence while retaining a distinct Central List.

10

STAGE 10 SC SUB-CLASSIFICATION: E.V. CHINNAIAH V. STATE OF ANDHRA PRADESH (2004) TO DAVINDER SINGH (2024)

E.V. CHINNAIAH V. STATE OF ANDHRA PRADESH (2004)

DAVINDER SINGH (2024)

6:1

EVIDENCE

NO LIST ALTERATION

OLD RULE

- E.V. Chinnaiah v. State of Andhra Pradesh (2004): notified SC class treated as indivisible.
- State grouping for separate quotas was barred.

CURRENT HOLDING

- Davinder Singh (2024): 6:1; E.V. Chinnaiah v. State of Andhra Pradesh (2004) overruled.
- Rational principle, nexus and evidence may support sub-classification.

LIMITS

- No Article 341 list alteration and no all-seats exclusivity.
- Enabling and judicially reviewable; no compulsory nationwide model.

MECHANISM / VERDICT — Sub-classification may advance substantive equality only within evidence-based constitutional limits.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Davinder Singh (2024) separates fair distribution within the SC list from formal alteration of the list.

11

STAGE 11 UPSC SYNTHESIS: SOURCE, AUTHORITY, EFFECT AND STATUS

FIELD

CLASS

SOURCE

AUTHORITY

EFFECT

STATUS

Field -> legislature, service, list, oversight, welfare or local body.

Class -> SC, ST, SEBC, EWS or Anglo-Indian transition.

Source -> exact Article, amendment, law, notification and case.

Authority -> President, Parliament, State, commission or delimitation process.

Effect -> identify, reserve, distribute, monitor or fund.

Status -> commenced, operational, expired or pending a legal step.

DIAGNOSE

- Field -> legislature, service, list, oversight, welfare or local body.
- Class -> SC, ST, SEBC, EWS or Anglo-Indian transition.

PROVE

- Source -> exact Article, amendment, law, notification and case.
- Authority -> President, Parliament, State, commission or delimitation process.

QUALIFY

- Effect -> identify, reserve, distribute, monitor or fund.
- Status -> commenced, operational, expired or pending a legal step.

MECHANISM / VERDICT — Substantive equality requires both effective inclusion and fidelity to institutional competence.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Exact-source discipline converts a reservation essay into a constitutional answer.

E

EXTRA OPTIONAL ADVANCED: ANTI-CAPTURE AND REPRESENTATIVE QUALITY

OPTIONAL ADVANCED

ANTI-CAPTURE

REPRESENTATIVE QUALITY

DATA

ANALYSIS

- Recognition may not ensure voice or equal benefit capture.
- Federal differentiation requires comparable data and reasoned law.

LIMIT

- Party selection and rotation affect substantive representation.
- Sub-classification needs periodic review and anti-exclusivity safeguards.

OPTIONAL STATUS — This enrichment is unnecessary for a competent core answer but can sharpen evaluation.